

-
File No.: EXP202411660

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, and upon noticing indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202401778. The complaint was accepted for processing on February 6, 2024.

SECOND: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter).

In the framework of the investigative actions, an information request was sent twice, the first directed to NEGOCIOS R&R; 2020 S.L. and the second to its sole administrator, requesting that, within ten working days, the specified information and documentation be submitted to this Agency.

THIRD: The aforementioned information request was notified on both occasions in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), being received on March 20 and April 12, 2024, as recorded in the acknowledgments of receipt in the file.

FOURTH: On April 29, 2024, and with entry registration number REGAGE24e00031448899, NEGOCIOS R&R; 2020 S.L. submitted a response to the request. Once this response was analyzed, a new information request was sent four times to NEGOCIOS R&R; 2020 S.L., requesting that, within ten working days, the specified information and documentation be submitted to this Agency.

FIFTH: The aforementioned information request was notified on all four occasions in accordance with the rules established in the LPACAP.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

2/6

The first and third times, the request was not collected by NEGOCIOS R&R; 2020 S.L. within the availability period, as recorded in the acknowledgments of receipt in the file, understanding that the notifications were made, in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP, on May 11 and June 28, 2024.

The second time, the request was sent by postal mail, being collected by NEGOCIOS R&R; 2020 S.L. on May 31, 2024, as recorded in the acknowledgment of receipt in the file.

The fourth time, the request was sent by postal mail and was returned to sender by the postal service on August 5, 2024, due to being unclaimed (not picked up at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file.

SIXTH: Due to the lack of response from NEGOCIOS R&R; 2020 S.L., a new information request was sent, directed to its sole administrator, requesting that, within ten working days, the specified information and documentation be submitted to this Agency.

The information request, which was notified in accordance with the rules established in the LPACAP, was collected on August 7, 2024, as recorded in the acknowledgment of receipt in the file.

SEVENTH: Regarding the information requested in the last two requests, NEGOCIOS R&R; 2020 S.L. has not submitted any response to this Spanish Agency for Data Protection.

EIGHTH: On September 11, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against NEGOCIOS R&R; 2020 S.L., for the alleged infringement of

Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was received by NEGOCIOS R&R; 2020 S.L. on September 30, 2024, as recorded in the acknowledgment of receipt in the file.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from NEGOCIOS R&R; 2020 S.L.

Article 64.2.f) of the LPACAP - a provision of which NEGOCIOS R&R; 2020 S.L. was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to NEGOCIOS R&R; 2020 S.L., and the sanction that could be imposed. Therefore, considering that NEGOCIOS R&R; 2020 S.L. has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

TENTH: According to the report collected from the AXESOR tool, the entity NEGOCIOS R&R; 2020 S.L. is a SME, established in 2020, with a turnover of (...) euros in 2022.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The requests for information indicated in the background sections two to six were notified in accordance with the provisions of the LPACAP.

SECOND: NEGOCIOS R&R; 2020 S.L. has not responded to the last two requests for information made by this Agency within the framework of the investigation proceedings of file EXP202401778 within the timeframes granted for this purpose.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation not fulfilled

In light of the facts presented, it is considered that NEGOCIOS R&R; 2020 S.L. has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of NEGOCIOS R&R; 2020 S.L., the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/6

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement

attributable to NEGOCIOS R&R; 2020 S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions.”

III

Classification and qualification of the infringement

The facts presented are considered to constitute an infringement attributable to NEGOCIOS R&R; 2020 S.L.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “not providing access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.”

IV

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

The GDPR provides maximum amounts in Article 83, paragraphs 4 to 6, which group various types of different conduct. In this regard, it is noted that the infringement determined in this procedure is classified under Article 83.5 of the GDPR, thus falling within the set of infringements of greater severity that carry a higher sanction range.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

Furthermore, the seriousness of the infringement must be noted in accordance with Article 83.2.a), due to its nature, given the protected interests and its place within the framework of data protection. By failing to provide an adequate response to the information request made, the investigative powers granted to the supervisory authorities by the GDPR are disobeyed, thus hindering the control function assigned to them by the GDPR, preventing the effective supervision of the application of the GDPR and the achievement of its objectives.

Additionally, the company's turnover is taken into consideration as a relevant element to be assessed in order to impose an effective, deterrent, and proportionate fine, in accordance with Article 83, paragraph 1, of the GDPR.

In light of the facts presented, it is deemed appropriate to impose a sanction on NEGOCIOS R&R; 2020 S.L. for the violation of Article 58.1 of the GDPR as classified in Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 12,000.00 euros.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on NEGOCIOS R&R; 2020 S.L., with NIF B01983576, for an infringement of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, a fine of 12,000.00 euros (TWELVE THOUSAND euros).

SECOND: TO ORDER NEGOCIOS R&R; 2020 S.L., with NIF B01983576, that in accordance with the investigative power provided in Article 58.1.a) of the GDPR, the requested information in the requests made within the framework of the proceedings numbered EXP202401778, to which reference has been made in the background of this resolution, be provided within ten working days from the date this resolution becomes final and enforceable.

It is warned that failure to comply with the requests of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: NOTIFY this resolution to NEGOCIOS R&R; 2020 S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/6

heading of this document, in the restricted account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024
Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es